



General Rate Act 1970

1970 CHAPTER 19

An Act to make provision as to the assessment of dwelling-houses for the purposes of valuation lists under the General Rate Act 1967 by reference to evidence as to the rents at which other dwelling-houses have been let or as to the relationship between those rents and the gross values of those other dwelling-houses in the current valuation lists. [15th May 1970]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) In section 19 of the General Rate Act 1967 (which relates to the general rule for the ascertainment of rateable value) after subsection (2) there shall be inserted the following subsection:—

Ascertainment of gross value of dwelling-house.

“(2A) Where the gross value of a hereditament which is a dwelling-house falls to be ascertained for the purposes of a new valuation list coming into force on or after 1st April 1973, then, subject to subsections (3) and (3A) of section 83 of this Act, any evidence taken into account or adduced—

- (a) as to the rents at which other dwelling-houses have been let; or
- (b) as to the relationship between those rents and the gross values of the hereditaments consisting of those other dwelling-houses as shown in the valuation lists ceasing to be in force on the date of the coming into force of the new valuation list in question,

shall be regarded as relevant and admissible for the purpose of that ascertainment, whether those other dwelling-houses

are of the same or a different description, if, at the beginning of the period of three years ending with the date of the coming into force of the new valuation list in question, the site of each respectively of those other dwelling-houses was situated within the area of a local valuation panel constituted in accordance with section 88(2) of this Act which was either the same such area as, or such an area contiguous at some point with, that in which the site of the dwelling-house in question was situated; and, without prejudice to any right under section 69 of this Act to make a proposal for the alteration of the valuation list so far as it relates to any particular hereditament, the valuation officer shall not be held to have failed in the proper discharge of his duties with respect to the preparation and maintenance of the valuation list by reason of his having assessed a dwelling-house or dwelling-houses by reference only to such evidence with respect to other dwelling-houses.”.

(2) In section 83 of the said Act of 1967, after subsection (3) (which restricts the use of certain returns as evidence by or on behalf of the valuation officer) there shall be inserted the following subsection:—

“(3A) Subsection (3) of this section shall apply to any gross values taken into account by the valuation officer by virtue of section 19(2A)(b) of this Act as it applies to returns to which this section applies, and—

(a) the reference in paragraph (b) of the said subsection (3) to the returns there mentioned shall be construed—

(i) in the application of that paragraph to a return relating to a hereditament in a rating area other than that for which the valuation officer was appointed, as a reference to a copy of that return certified by a valuation officer to be a true copy;

(ii) in the application of that paragraph to any of the gross values taken into account as aforesaid, as a reference to such a copy of the relevant part of the relevant valuation list as is referred to in section 84 of this Act;

(b) subsection (2) of this section shall apply to such a copy of a return as is referred to in paragraph (a)(i) of this subsection as it would apply to the return itself.”.

(3) In section 84 of the said Act of 1967 (which relates to the proof of the contents of a valuation list as for the time being in force) the words “as for the time being in force” are hereby repealed.

2.—(1) This Act may be cited as the General Rate Act 1970. Citation, extent and

(2) The General Rate Act 1967 and this Act may be cited together as the General Rate Acts 1967 and 1970. commencement.

(3) This Act does not extend to Scotland or to Northern Ireland. 1967 c. 9.

(4) Notwithstanding anything in section 119(4) of the General Rate Act 1967, this Act shall come into operation on the expiration of the period of one month beginning with the day on which it is passed.